

Devendra Nath Dubey v. State of U.P. and Others

High Court of Judicature at Allahabad · Division Bench · 6 November 2024 · 2024:AHC:174229-DB · Writ - C No. 36499 of 2024 · **Writ disposed; clause 6.5 representation; recovery stayed**

HEADNOTE

A writ disputing electricity dues of Rs. 1,48,790 was disposed of with liberty to file a representation or objection under clause 6.5 of the U.P. Electricity Supply Code, 2005. Filed within 15 days, it is to be decided on merits by the Executive Engineer, preferably within one month. Coercive recovery is stayed for two months or until that decision, and the stay lapses if the representation is not filed in time.

FACTUAL SUMMARY

Devendra Nath Dubey holds electricity connection no. 0423449000 at House No. 217, Kayasthana, Machhalishahar, Jaunpur, supplied by Purvanchal Vidyut Vitaran Nigam Limited. A due bill of Rs. 1,48,790 was shown against the premises up to 3 September 2024. He sought quashing of that bill, a direction that the due bill be made available, and a restraint on disconnection. The licensee submitted that the correctness of the dues could be raised by a representation or objection under the Supply Code.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

disputed bill relegated to clause 6.5 representation

HOLDING

A consumer disputing the correctness of electricity dues has an effective remedy by representation or objection under clause 6.5 of the U.P. Electricity Supply Code, 2005, and the writ is disposed of with liberty to file it. If filed within 15 days, the Executive Engineer shall consider and decide it on merits, preferably within one month of filing along with a certified copy of the order. No coercive action for recovery shall be taken for two months from the order or until disposal of the representation; if the representation is not filed within 15 days, that protection stands automatically vacated. ¶ 4-8

PRINCIPLE TAGS

clause-6.5-statutory-remedy-disputed-bill The challenge to the correctness of dues of Rs. 1,48,790 was not decided in writ; the petition was disposed of with liberty to file a representation or objection under clause 6.5. ¶ 3-5

clause-6.5-representation-executive-engineer A representation filed within 15 days is to be considered and decided on merits by the Executive Engineer, Purvanchal Vidyut Vitaran Nigam Limited, Machhalishahar, preferably within one month. ¶ 6

para-6.5-objection-before-coercive-recovery Coercive recovery was stayed for two months or until disposal of the clause 6.5 representation, and the stay lapses automatically if the representation is not filed within 15 days. ¶ 7-8

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY DUES OF RS. 1,48,790

Left to the Executive Engineer to decide on merits if a clause 6.5 representation is filed within 15 days. ¶ 3-6

